PLAIN-LANGUAGE EXPLAINER

Australia's Digital Assets Framework Act: What It Means for Tokeniser

A guide to the new licensing rules for digital asset platforms and tokenised custody platforms: who is affected, when, what changes for issuers who tokenise through Tokeniser, and where Redbelly's compliance design fits.

Law covered: Act No. 38, 2026 (as made) Sources checked: 27 October 2026

Reading time: about 20 minutes

General information only. This is not legal advice.

This explainer summarises public sources in plain language. It is not legal, financial, tax or investment advice, and it is not a recommendation to acquire, sell or hold any digital asset or financial product. It does not say, and should not be read as saying, that Redbelly Network, Tokeniser or any issuer is licensed, exempt or compliant. Much of the detail is still being settled through ASIC standards, guidance and regulations. Get advice from a qualified Australian lawyer before acting on anything here.

Independent community explainer prepared for the Redbelly DAO. It is not an official publication of Redbelly Network, Tokeniser, ASIC or the Australian Government. Redbelly logos and colours are taken from Redbelly's published brand kit.

How to read this

Every factual statement has a numbered source. The text is labelled so you can tell what the law says from what companies say about themselves, and from the writer's own reading.

THE LAW SAYS

What the Act, Parliament, Treasury or ASIC says. Each point has a source.

COMPANY STATEMENT

What Redbelly or Tokeniser say about their own products. These are their claims, not findings.

ANALYSIS

The writer's interpretation. It could be wrong, and it is labelled so you can tell it apart.

LAW MADE

8 Apr 2026

Royal Assent. The Act becomes law but does not yet apply.[1]

HAVE YOUR SAY

27 Nov 2026

ASIC's consultation on draft standards and guidance (CP 392) closes.[8]

START DATE

8 Apr 2027

The Act commences and licence applications open. See the date note.[9]

APPLY BY

7 Oct 2027

Last day for existing platforms to apply and keep operating while ASIC decides.[9]

The short version

1. The Act adds two new financial products to Australian law: a **digital asset platform (DAP)**, where a business holds digital tokens for customers, and a **tokenised custody platform (TCP)**, where a business holds an asset for customers and issues one redeemable token for it.[1]

2. Businesses that operate these platforms will generally need an **Australian financial services licence (AFSL)** from ASIC, with extra rules written for platforms: ASIC standards, platform rules and a plain-English guide for retail clients.[4] [1]

3. Some things sit outside the licensing net, including **small DAPs** (no more than $10 million a year in transactions and $5,000 per customer, with a notice to ASIC) and **public blockchains** that pass a three-part test. Validating such a network is not a financial service.[1]

4. The Act **commences on 8 April 2027**. Existing platforms have until **7 October 2027** to apply, and can keep operating while ASIC decides.[9]

5. ANALYSIS For issuers using Tokeniser, the deciding questions are practical: who controls the tokens or keys, whether a separate asset sits behind each token, and whether the product is already regulated, for example as a managed investment scheme.

What the Act is and why it was introduced

What it is

THE LAW SAYS

The *Corporations Amendment (Digital Assets Framework) Act 2026* is Act No. 38 of 2026. It amends the *Corporations Act 2001* and the *Australian Securities and Investments Commission Act 2001*.[1]

It was introduced into Parliament on 26 November 2025, passed both Houses on 1 April 2026 and received Royal Assent on 8 April 2026.[3] [1]

It does not create a stand-alone "crypto law". It brings two new types of platform into the existing financial services system, so their operators need an AFSL and take on the core duties that apply across that system, such as acting efficiently, honestly and fairly, not engaging in misleading conduct, giving clear information about how assets are held, and offering dispute resolution.[4]

Why it was introduced

THE LAW SAYS

When the Bill was introduced, the Government said: "Currently, businesses can hold unlimited client digital assets without financial law safeguards. Recent collapses overseas have shown the consequences of inadequate oversight."[4]

ASIC describes the Act as addressing "regulatory gaps and consequent uncertainty" for digital assets and some of the infrastructure that supports them, with the aim of fostering innovation, competition and growth.[9] ASIC says its approach to implementing it follows the principle of "same activity, same risk, same regulatory outcome".[8]

Five terms you need

TERM	PLAIN MEANING	WHERE
Digital token	An electronic record that someone can control in fact. They can transfer it, stop others from transferring it, and show that they can do both. What matters is practical control, not legal title.[1]	s 761GB
Digital asset platform (DAP)	An arrangement where a business (the "operator") possesses digital tokens for, or on behalf of, a client. A crypto exchange or custodian that holds customers' tokens is the obvious example.[1]	s 761GC

TERM	PLAIN MEANING	WHERE
Tokenised custody platform (TCP)	An arrangement where the operator holds an asset other than money (for example gold, or a share), creates a single digital token for each asset, and the token gives its holder the right to redeem the asset or direct its delivery. If something fits both definitions, it is a TCP.[1]	s 761GD, 761GC(4)
Public digital token infrastructure	Software or hardware that transmits, processes or records digital tokens, whose protocols are (a) open-source, publicly accessible standards applied in a non-discretionary way, (b) open for any person to contribute to the network's integrity, functionality and reliability, and (c) not reliant on any participant whose role is so critical that the network cannot work without it. Regulations can switch the test off for particular protocols, or name infrastructure that counts.[1]	s 9E
Wrapped token	A token that gives a right to redeem an underlying asset, such as an asset held in a TCP. When deciding whether the token is a financial product, that redemption right is ignored, so broadly the token takes on the character of the asset behind it.[1] [10]	s 765E; draft RG 000.48

THE LAW SAYS

A DAP or TCP is a financial product separate from any asset held through it. Obligations can therefore apply both to the platform and, separately, to a token or asset on it that is itself a financial product, such as a tokenised share.[10]

Who needs a licence, and who does not

Who needs a licence

THE LAW SAYS

- **Platform operators.** From 8 October 2027, DAP and TCP operators, and some other providers of related financial services, will need an AFSL with the right DAP or TCP authorisation unless an

exemption applies.[9]

- **People who deal in or advise on platforms.** Related services, for example dealing other than by issuing, or giving advice about DAPs and TCPs, also need a licence.[9]
- **Generally a corporation, not an individual.** These services must be provided by a "constitutionally-covered corporation", broadly a trading, financial or foreign corporation. An individual or partnership that provides them using phone, internet or similar services contravenes a civil penalty provision.[1] [2] (ss 766M, 9; Constitution s 51(xx))
- **Extra duties for licensed operators.** On top of the general AFSL duties, operators must comply with ASIC's asset-holding standards and transactional and settlement standards; have platform rules with set contents, including transparent and non-discriminatory eligibility criteria; before issuing a platform to a retail client, give them a "DAP/TCP Guide" and have a voting policy covering any voting or governance rights attached to the assets; and pass on communications about underlying assets when a client asks.[1] (ss 912BB, 912BC, 912BG, 1020AN to 1020AR)
- **Product design rules.** An issuer that must prepare a DAP/TCP Guide must also make a target market determination for the platform.[1] [10] (s 994B as amended)

Who does not need a licence: the main carve-outs

CARVE-OUT	WHAT IT REQUIRES	WHERE
Low-value DAP DAPs only, not TCPs	All of these must be met: no financial products are held on any DAP issued by the operator's closely-related group; total transactions through those platforms in the last 12 months do not exceed **$10 million**; whenever a token becomes an asset of a client on those platforms, the total entry value of that client's assets does not exceed **$5,000**; and the operator has lodged a notice with ASIC in the prescribed form.[1] Regulations can raise the dollar amounts. ASIC's draft guide says the client-value and transaction-value tests will rise over time with inflation. The platform is still a DAP and other rules may still apply.[1] [10]	s 911A(2)(ja), (4B), (6); draft RG 000 Table 3
Incidental advice and arranging	Only telling someone that a DAP or TCP exists, or arranging for them to use one, in the ordinary course of business, where those services are not a significant part of the business.[1]	s 911A(2)(jb)
Public digital token infrastructure	It is not a managed investment scheme and not a financial product. Taking part in consensus (for example validating) is not a financial service, and is not a clearing and settlement facility.[1]	s 9 (mf); 765A(1)(xa), (xb); 766A(3)(b); 768A(2)(ha)

CARVE-OUT	WHAT IT REQUIRES	WHERE
Custodial staking through a licensed platform	Where the platform issuer holds an AFSL authorising it to issue the platform, the staking part is not a separate managed investment scheme or financial product.[1] [10]	s 9 (me); 765A(1)(pa), (pb)
Technology only	ASIC's draft guide says an arrangement may not be a DAP where it only provides technology or infrastructure to an operator and does not possess tokens for the operator's clients. This includes some multi-party computation (MPC) key set-ups under regulations that are still anticipated.[10]	draft RG 000.41(b)
Proposed further exemptions	Sub-custodian, overseas issuer and client, overseas related body corporate or joint venture, and nominee company exemptions are proposed in regulations that remain "subject to Government processes".[10] [9]	draft RG 000 Table 3; CP 392 para 38

When another regime applies instead

THE LAW SAYS

- **Managed investment schemes.** A DAP or TCP that is also a managed investment scheme is regulated as a scheme, unless carve-outs apply: clients can redeem the assets, the operator acts only on client instructions, and the operator cannot materially set clients' rights. For a TCP, the assets must also be of one class, and tokens can only be as divisible as the asset can be physically delivered.[1] [10] (ss 764A(1)(la), (lb); 9 (mc), (md))
- **Markets and clearing.** If a facility meets the definition of a financial market or clearing and settlement facility for assets that are financial products, those regimes apply rather than the DAP rules.[10]
- **Ministerial powers.** The Minister can declare a DAP to be a financial market or clearing and settlement facility, exempt it from those regimes, or ban specified financial products from going through specified platforms.[1] (ss 767B, 767C, 768B, 768C, 912BH)

A quick self-check

ANALYSIS

A simplified way to orient yourself. It is not a substitute for advice, and each step depends on the facts.

Q1 **Does anyone other than the client have practical control of the client's tokens (can move them, can block others, and can show it)?**

If yes, and they hold them for the client, the arrangement may be a DAP.[1]

Q2 **Is a non-money asset held for the client, with one token per asset that can be redeemed?**
If yes, it may be a TCP, and TCP takes priority over DAP.[1]

Q3 **Is it already something else, such as a managed investment scheme, a financial market or a clearing and settlement facility?**
If yes, that regime may apply instead of, or as well as, the platform rules.[10]

Q4 **Does an exemption fit, such as the low-value DAP exemption or incidental arranging?**
Check every condition. The low-value exemption also needs a notice lodged with ASIC.[1]

Timeline: before and after commencement

Date note: 8 or 9 April 2027?

The Act says it commences on "the day after the end of the period of 12 months beginning on the day this Act receives the Royal Assent".[1] The Federal Register's commencement table records that day as 8 April 2027, although that column is expressly not part of the Act.[1] (s 2(2))

ASIC's April and May 2026 publications said 9 April 2027.[5] [6] ASIC's October 2026 consultation paper and media release say 8 April 2027, with 7 October 2027 as the last day to apply during transition.[9] [8] This explainer uses ASIC's latest dates. If an exact day matters to you, confirm it with ASIC.

BEFORE COMMENCEMENT

26 November 2025
Bill introduced into the House of Representatives; the Government announces the reforms.[3] [4]

4 February 2026
Bill passes the House.[3]

5 February 2026
Introduced in the Senate and referred to the Senate Economics Legislation Committee, which reported on 16 March 2026.[3]

1 April 2026
Bill passes both Houses.[3]

8 April 2026
Royal Assent. The Act is law, but its rules do not yet apply.[1]

20 April 2026
ASIC publishes its 18-month implementation roadmap.[5]

30 September 2026
Deadline under ASIC's sector-wide INFO 225 "no-action" position, extended from 30 June 2026. This concerned licensing under the *existing* law for digital assets that are already financial products, not the new DAP and TCP regime.[7] [6]

15 October 2026
ASIC releases Consultation Paper 392 with a draft regulatory guide, draft asset-holding and transactional and settlement standards, and draft financial requirements.[8]

27 November 2026, 5pm AEDT
CP 392 submissions close.[8]

November 2026 to March 2027
ASIC reviews feedback, with final instruments and guidance planned for March 2027.[9]

COMMENCEMENT

8 April 2027
The Act commences and DAP and TCP licence applications open.[9]

AFTER COMMENCEMENT

8 April to 7 October 2027: transition
The Act gives a six-month transition period starting on commencement. A business without the relevant authorisation can keep providing the service during it. If it applies within the period, the new rules do not apply to it until the day after ASIC decides the application.[1] [9] (ss 1730, 1732)

7 October 2027
Transition window closes for licence applications and variations.[9]

From 8 October 2027
DAP and TCP operators need the relevant authorisation unless exempt. A business that did not apply during transition is subject to the new rules as soon as the period ends.[9] [1]

Ongoing
ASIC licenses, supervises and enforces the regime; regulations, ASIC standards and ministerial declarations can change the detail over time.[5] [1]

What changes for issuers who tokenise through Tokeniser

Starting point: what Tokeniser says it does

COMPANY STATEMENT

- Tokeniser describes itself as software for fund administration and investor portals that runs on Redbelly Network, and as "a Redbelly Network project".[11] [16]
- It says: "Products issued through Tokeniser operate under an Asset Issuer's existing licensing", and that it programs eligibility checks (identity, KYC, AML, CTF, wholesale and sophisticated investor tests, and target market determinations) into each asset.[11]
- It says it does not hold investors' private keys (the investor or a designated key manager does), and that it offers key management and recovery options.[15]
- It lists IQ-EQ as providing trust, registry and fund administration services, and "licence and service".[16]

What the law and ASIC say that matters for issuers

THE LAW SAYS

- **Tokenising is not, by itself, what gets licensed.** ASIC's draft guide: "A TCP is one way assets may be tokenised. Not every tokenisation arrangement is a TCP."[10]
- **Native tokenised fund units.** ASIC's draft guide says a "direct" or "native" tokenisation arrangement, where each token represents a unit in a unit trust and the blockchain is the primary unit-holder register, "would generally be a managed investment scheme rather than a TCP".[10]
- **Tokens over financial products.** A token created by a TCP over an asset that is a financial product will generally be the same type of financial product as that asset.[10] [1]
- **Raising money through a platform.** A person offering securities through a DAP or TCP under a disclosure document lodged with ASIC must promptly tell the platform operator and each custodian if a supplementary or replacement document is lodged, if the person becomes prohibited from making offers under it, or if the document is withdrawn. The disclosure document does not need to describe the platform itself.[1] (s 741A)
- **Platform-created interests.** Platform operators and promoters are exempt from the fundraising rules for the equitable interests in securities that arise from holding them through the platform.[1] (s 741B)
- **Secondary trading venues.** A business may run a financial market for tokenised securities alongside a DAP for tokens that are not financial products, and each part is assessed separately.[10]

What that is likely to mean in practice

ANALYSIS

The cards below apply the rules above to common set-ups. They are the writer's reading, not ASIC's, and real structures will vary.

SET-UP A

Fund units or shares issued natively; investors hold their own keys

No one holds tokens for investors and there is no separate asset held behind each token. On ASIC's draft view of native tokenisation, the main rules are likely to be the ones that already apply to the fund or company (scheme, AFSL, disclosure, target market and AML/CTF rules), not the DAP or TCP rules.[10]

SET-UP B

Someone can move investors' tokens for them

If the issuer, an administrator, Tokeniser or a key manager can transfer investors' tokens, block others and show it, that party may "possess" the tokens and could be operating a DAP. Who holds which keys, and whether control is shared, is the central fact. The Act has a rule for joint control, and regulations are expected on MPC.[1] [10] (ss 761GB(2), 86(3); draft RG 000.41(b))

SET-UP C

An existing asset is held, and one redeemable token is issued for it

For example a bond, gold or existing shares held by a custodian. This looks like a TCP. The operator would need a TCP authorisation, platform rules, a DAP/TCP Guide for retail clients and compliance with ASIC's asset-holding standards.[1] [9]

SET-UP D

Secondary trading through liquidity pools, or lending

This is the least settled area. Whether trading tokenised financial products this way is operating a financial market, or falls within the public infrastructure carve-out, depends on facts and on guidance still to come.[10] See Section 5.

A practical checklist for issuers

ANALYSIS

- [ ] Map control: list every party that holds keys or can move investors' tokens, including recovery and back-up arrangements.
- [ ] Classify each product and service in writing (DAP, TCP, managed investment scheme, market, or none) with reasons.
- [ ] Compare your AFSL authorisations with ASIC's proposed DAP and TCP authorisations once they are final.
- [ ] Record who configures eligibility rules and who signs them off. Tokeniser itself says the fund manager remains responsible for configuring them and remains the AML/CTF reporting entity.[14]
- [ ] Read CP 392 and consider making a submission by 27 November 2026.[8]
- [ ] Watch for ASIC's final guidance and standards, planned for March 2027.[9]

Get advice from an Australian financial services lawyer before you rely on any classification.

Where Redbelly's compliance design lines up, and where it is unclear

COMPANY STATEMENT

- Redbelly's documentation describes **Receptor** as its "native digital identity and verifiable credential protocol", which "facilitates network access" and helps use cases surface eligibility criteria and users prove they meet them. It is built on the W3C verifiable credential data model. [18]
- The **Eligibility Kit** lets asset issuers verify investor eligibility using zero-knowledge proofs, without the investor revealing the underlying personal data.[19] Supported credential types include an AML/CTF credential and an Australian sophisticated or wholesale investor credential. [20]
- Individual onboarding includes wallet authentication, KYC verification and on-chain permission set-up.[21] Business onboarding (KYB) is provided by Averer.[22]
- Redbelly says AML, CTF and Travel Rule requirements "can be applied as needed".[17]

The table compares what the law asks for with what Redbelly and Tokeniser describe. The first column is law, the second is company statements, and the third is the writer's analysis.

WHAT THE LAW ASKS FOR	WHAT REDBELLY OR TOKENISER DESCRIBE	HOW IT LINES UP (ANALYSIS)
Platform rules must include "transparent and non-discriminatory eligibility criteria for identifying who can become a client".[1] s 912BG(1)(a)	Eligibility criteria written as credential queries and checked before access; Tokeniser says every transfer is checked against the asset's rules.[20] [11]	Lines up as a mechanism Criteria can be encoded and applied the same way every time. Writing criteria that are transparent and non-discriminatory remains the licensed operator's job.
ASIC can set asset-holding standards on record-keeping, reconciliation and reporting.[1] s 912BE(1)(a)(ii)	Tokeniser says every compliance check, transfer and rejection is recorded on-chain and in a compliance log.[14]	Partly; depends on final standards A shared ledger may make reconciliation easier. Whether it meets the standards cannot be known until ASIC finalises them.

WHAT THE LAW ASKS FOR	WHAT REDBELLY OR TOKENISER DESCRIBE	HOW IT LINES UP (ANALYSIS)
Asset-holding standards are expected to cover holding on trust, segregation and withdrawal rights. The Act says the standards must not ban holding clients' tokens in one wallet if internal records identify each client's tokens.[5] [1] s 912BE(2)(e)	Tokeniser says investors hold tokens in their own wallets, or through a designated key manager.[15]	**Depends on the custody model** True self-custody may mean the DAP rules are not engaged at all. Where a key manager can move tokens for investors, the standards may apply to that party.
Retail clients must get a DAP/TCP Guide before a platform is issued to them; a target market determination is needed where a Guide is required.[1] [10] ss 1020AN, 994B	An Australian sophisticated or wholesale investor credential exists; Tokeniser says target market determinations are enforced at transfer.[20] [12]	**Lines up for enforcement** Gating who can hold an asset supports distribution rules. It does not write the DAP/TCP Guide or the target market determination; those documents are still required.
Platform rules must set out the settlement method, who bears counterparty and operational risk, and how acquisitions are recorded in any legal or technical register.[1] s 912BG(1)(c), (d)	Deterministic finality, described as final "the moment it completes".[12]	**Partly** Clear finality may make the settlement method easier to describe. The disclosures still have to be written and kept accurate.

WHAT THE LAW ASKS FOR	WHAT REDBELLY OR TOKENISER DESCRIBE	HOW IT LINES UP (ANALYSIS)
The DAF Act itself contains no anti-money laundering rules. Its eligibility, conduct and disclosure duties fall on the licensed operator.[1] ss 912BA to 912BG, 1020AM	KYC in onboarding; Tokeniser says the fund manager remains the reporting entity under the AML/CTF Act.[21] [14]	Supporting tool, not a substitute Tools can help the responsible entity meet its duties; they do not move those duties onto the network.
A voting policy: vote only on client instructions where clients can instruct, and pass on communications about underlying assets on request.[1] ss 1020AP to 1020AR	No specific feature found in the sources reviewed.	Not addressed in sources reviewed A gap to ask about rather than assume either way.
Public digital token infrastructure must meet three tests: open, non-discretionary protocols; any person may contribute; no critical participant. Regulations can exclude or prescribe infrastructure.[1] s 9E	Tokeniser says Redbelly is "designed to meet the three statutory tests".[12] Redbelly's docs say issuers who provide network access are accredited by Redbelly[18]; node operators are "successful applicants" who receive an invitation[23]; operators must stake RBNT and Redbelly may slash misbehaving participants[25]; governors must notify Redbelly of planned downtime.[24]	Unclear No ASIC guidance, court decision or regulation was found that decides whether Redbelly is public digital token infrastructure. Invitation-based node operation and Redbelly's role in accrediting network-access issuers raise questions under test (b), "any person" may contribute, and test (c), no critical participant. Tokeniser's own page flags test (c) as needing evidence for protocols with a privileged role.[13]

WHAT THE LAW ASKS FOR	WHAT REDBELLY OR TOKENISER DESCRIBE	HOW IT LINES UP (ANALYSIS)
The Act takes public digital token infrastructure out of the scheme and financial product definitions, and takes consensus out of financial services and clearing and settlement.[1] ASIC's draft guide says the market regime applies where a facility meets the market definition for financial products.[10]	Tokeniser says automated market maker liquidity and lending sit in an "exempt protocol layer", citing the Explanatory Memorandum.[13]	Unclear The writer found no express carve-out of this infrastructure from the "financial market" definition in the Act's text. Whether a given pool or lending protocol is itself public infrastructure, and whether trading tokenised financial products through it is operating a market, are fact-specific. ASIC intends to update INFO 225, which covers how the Act treats public digital token infrastructure, before finalising its guide in early 2027.[10] The Explanatory Memorandum passages Tokeniser cites were not independently checked for this explainer.

ANALYSIS

Bottom line

- Redbelly's identity and eligibility tools line up most clearly with the parts of the law about **who may access a product** and **keeping records**.
- The law puts duties on people and companies (licensees, issuers and AML/CTF reporting entities), not on software. Tools can help them meet those duties. They do not take them over.
- The biggest open questions are about classification: whether Redbelly is public digital token infrastructure, who "possesses" tokens under a given key set-up, and when secondary trading needs a market licence. ASIC guidance, regulations or legal advice will need to settle them.
- Nothing here should be read as saying that Redbelly, Tokeniser or any issuer is licensed, exempt or compliant. Most of the regime has not started yet.

What to watch next

THE LAW SAYS

- **27 November 2026:** CP 392 submissions close.[8]
- **March 2027:** planned publication of ASIC's final standards and guidance.[9]
- **Regulations:** several exemptions, and how MPC key arrangements are treated, depend on regulations that are still "subject to Government processes".[10]

- **INFO 225 update:** ASIC intends to update INFO 225, the guidance that explains how the Act treats public digital token infrastructure, wrapped tokens and custodial staking, in the lead-up to finalising its guide in early 2027.[10]
- **Payments reforms:** some stablecoins will be regulated separately, as tokenised stored value facilities.[9]
- **Ministerial declarations:** the Minister can move platforms into or out of the market and clearing regimes, and ban certain products from platforms.[1]

Glossary

AFSL	Australian financial services licence, issued by ASIC under the Corporations Act. DAP and TCP operators will need one with the right authorisation unless exempt.[9]
ASIC	Australian Securities and Investments Commission, which licenses and supervises these platforms and enforces the law.[5]
Royal Assent	The step that makes a passed Bill an Act. For this Act it was 8 April 2026.[1]
Commencement	The day the Act's rules start to operate: 8 April 2027 on ASIC's latest statement.[8]
Transition period	The six-month period starting on commencement.[1] s 1730
Platform rules	The operator's rules for a DAP or TCP. They have effect as a contract between the operator and each client.[1] s 912BG(2)
DAP/TCP Guide	The disclosure document a licensee must give a retail client before issuing a DAP or TCP.[1] s 1020AN
Constitutionally-covered corporation	A corporation covered by section 51(xx) of the Constitution (foreign corporations, and trading or financial corporations formed in Australia), or a body that is a corporation under the Corporations Act as originally enacted.[1][2] s 9
Managed investment scheme	A pooled investment arrangement regulated under Chapter 5C of the Corporations Act. Some platforms are carved out of this definition.[10]

Verifiable credential	A credential (for example, proof of passing KYC) that an issuer gives to a holder and a verifier can check. Receptor uses the W3C verifiable credential data model, with issuer, holder and verifier modules.[18]
Zero-knowledge proof	A way to prove a statement is true (for example "is a wholesale investor") without revealing the underlying data.[19]
TMD	Target market determination, required under the design and distribution obligations.[10]

Sources

Primary sources (the Act, Parliament and ASIC) are used for every statement about the law. Company websites are used only for what the companies say about themselves. All links were checked on 27 October 2026. A claim-by-claim table is on the Sources & checks page.

[1] **Corporations Amendment (Digital Assets Framework) Act 2026 (No. 38, 2026), as made**
PRIMARY LAW Federal Register of Legislation · Assented to 8 April 2026
https://www.legislation.gov.au/C2026A00038/asmade/text · PDF: https://www.legislation.gov.au/C2026A00038/asmade/2026-04-08/text/original/pdf
Used for: Assent date; commencement rule (s 2) and the Register's commencement column; definitions of digital token, DAP, TCP, wrapped token and public digital token infrastructure (ss 761GB, 761GC, 761GD, 765E, 9E); constitutionally-covered corporation rule (s 766M); licensee obligations (ss 912BB to 912BH); DAP/TCP Guide, voting policy and communications (ss 1020AN to 1020AR); design and distribution trigger (s 994B); fundraising rules (ss 741A, 741B); exemptions (ss 9 (me), (mf), 765A(1), 766A(3), 768A(2)(ha), 911A(2)(ja), (jb), 911A(4B)); managed investment scheme carve-outs (s 9 (mc), (md)); ministerial powers (ss 767B, 767C, 768B, 768C, 912BH); transitional rules (ss 1730 to 1733).

[2] **Commonwealth of Australia Constitution Act (The Constitution), section 51(xx)**
PRIMARY LAW Federal Register of Legislation · Latest compilation
https://www.legislation.gov.au/C2004Q00685/latest/text
Used for: Section 51(xx): "Foreign corporations, and trading or financial corporations formed within the limits of the Commonwealth". Used to explain the Act's term "constitutionally-covered corporation".

[3] **Corporations Amendment (Digital Assets Framework) Bill 2025: bill homepage and progress**
PARLIAMENT Parliament of Australia · Bill r7411
https://www.aph.gov.au/Parliamentary_Business/Bills_Legislation/Bills_Search_Results/Result?bId=r7411

Used for: Introduced 26 November 2025; passed the House 4 February 2026; introduced in the Senate and referred to the Senate Economics Legislation Committee 5 February 2026; committee report 16 March 2026; finally passed both Houses 1 April 2026; assent 8 April 2026. Also links the Explanatory Memorandum and Bills Digest.

---

[4] **New digital asset laws to unlock innovation and safeguard investment (joint media release)**
GOVERNMENT Treasurer and Minister for Financial Services · 26 November 2025
https://ministers.treasury.gov.au/ministers/jim-chalmers-2022/media-releases/new-digital-asset-laws-unlock-innovation-and-safeguard

Used for: Why the law was introduced (client assets held without financial law safeguards; overseas collapses); two new financial products; AFSL core obligations; small-platform exemption described as under $5,000 per customer and under $10 million in yearly transactions.

---

[5] **ASIC's roadmap for digital assets law reform implementation**
REGULATOR (ASIC) Australian Securities and Investments Commission · 20 April 2026
https://www.asic.gov.au/about-asic/news-centre/news-items/asics-roadmap-for-digital-assets-law-reform-implementation

Used for: 18-month implementation timeline; ASIC's plan to consult on asset-holding standards, transactional and settlement standards and financial requirements; indicative topics (holding on trust, segregation, record keeping, reconciliation, withdrawal rights); at the time, stated commencement of 9 April 2027.

---

[6] **Deadline looms for digital asset businesses to apply for a licence**
REGULATOR (ASIC) Australian Securities and Investments Commission · 4 May 2026
https://asic.gov.au/about-asic/news-centre/news-items/deadline-looms-for-digital-asset-businesses-to-apply-for-a-licence

Used for: INFO 225 no-action position (then due to end 30 June 2026) concerns licensing under existing law; penalties for unlicensed conduct; Act passed 1 April 2026; at the time, stated commencement of 9 April 2027.

---

[7] **ASIC extends no-action position for digital asset businesses to 30 September 2026**
REGULATOR (ASIC) Australian Securities and Investments Commission · 25 June 2026
https://www.asic.gov.au/about-asic/news-centre/news-items/asic-extends-no-action-position-for-digital-asset-businesses-to-30-september-2026

Used for: Extension of the sector-wide INFO 225 no-action position from 30 June 2026 to 30 September 2026, and its expanded scope.

---

[8] **26-245MR ASIC consults on implementation of new digital asset laws**
REGULATOR (ASIC) Australian Securities and Investments Commission · 15 October 2026
https://www.asic.gov.au/about-asic/news-centre/find-a-media-release/2026-releases/26-245mr-asic-consults-on-implementation-of-new-digital-asset-laws

Used for: New laws commence 8 April 2027; CP 392 contents; consultation closes 5pm AEDT 27 November 2026; "same activity, same risk, same regulatory outcome"; no-action deadline extended to 30 September 2026; ASIC recorded over 140 digital asset-related applications.

---

[9] **Consultation Paper 392 Digital asset law reform implementation: Proposed standards and guidance**
REGULATOR (ASIC) Australian Securities and Investments Commission · 15 October 2026
https://download.asic.gov.au/media/0pqj5lgc/cp392-published-15-october-2026.pdf · CP 392 landing page: https://www.asic.gov.au/regulatory-resources/find-a-document/consultations/cp-392-digital-asset-law-reform-implementation-proposed-standards-and-guidance

Used for: Next steps timeline (feedback by 27 November 2026; final instruments and guidance March 2027; commencement and applications open 8 April 2027; transition window closes 7 October 2027); purpose of the Act (paras 2 to 5); licensing from 8 October 2027 (para 39); related services need licensing (para 41); continue operating if applied by deadline (para 45); proposed new exemptions (para 38); payments reforms and tokenised stored value facilities (paras 6 and 7).

---

[10] **Draft Regulatory Guide 000 Digital asset platforms and tokenised custody platforms (Attachment 1 to CP 392)**
REGULATOR (ASIC) Australian Securities and Investments Commission · October 2026 (draft for consultation)
https://download.asic.gov.au/media/a3cpo5ds/attachment-1-to-cp392-published-15-october-2026.pdf

Used for: A DAP or TCP is a financial product separate from assets held through it (RG 000.20 to 000.21); INFO 225 to be updated on public digital token infrastructure (RG 000.22 note); not every tokenisation arrangement is a TCP and native tokenised fund units are generally a managed investment scheme (RG 000.33 note, RG 000.35 note); DAP scope and technology-provider carve-out (RG 000.36 to 000.41); wrapped token treatment (RG 000.48); managed investment scheme interaction (RG 000.49 to 000.53); custodial staking (RG 000.58 to 000.59); markets and CS facilities prevail (RG 000.60 to 000.62); exemptions do not stop a facility being a DAP or TCP, and Table 3 of key exemptions (RG 000.75 to 000.77); TMD needed where a DAP/TCP Guide is required (Section D table).

---

[11] **Tokeniser: home page and FAQ**
COMPANY (TOKENISER) Tokeniser Pty Ltd · Accessed 27 October 2026
https://tokeniser.com

Used for: Tokeniser's own description: SaaS for fund administration and investor portals, operating on Redbelly Network; "Products issued through Tokeniser operate under an Asset Issuer's existing licensing"; eligibility (identity, KYC, AML, CTF, wholesale and sophisticated investor tests, TMD) programmed into each asset and checked on every transfer.

---

[12] Tokeniser: Our technology
COMPANY (TOKENISER) Tokeniser Pty Ltd · Accessed 27 October 2026
https://tokeniser.com/technology
Used for: Tokeniser's statements that Redbelly is designed to meet the three statutory tests for public digital token infrastructure and to sit outside markets, clearing and settlement, and custody licensing; deterministic finality; TMD enforced at point of transfer.

---

[13] Tokeniser: Protocol finance
COMPANY (TOKENISER) Tokeniser Pty Ltd · Accessed 27 October 2026
https://tokeniser.com/protocol-finance
Used for: Tokeniser's view that automated market maker liquidity, lending and settlement sit in an exempt protocol layer, citing the Explanatory Memorandum; its own guardrails, including that a protocol with a controlling foundation, admin key or privileged role needs to evidence its design against s 9E(2)(c).

---

[14] How does Tokeniser handle investor compliance? (Knowledge Hub)
COMPANY (TOKENISER) Tokeniser Pty Ltd · Accessed 27 October 2026
https://tokeniser.com/resources/knowledge-hub/australia/how-tokeniser-handles-investor-compliance
Used for: KYC/AML and investor classification before wallet activation; compliance parameters enforced at transfer; checks and rejections recorded on-chain and in a compliance log; fund manager remains responsible for configuration and remains the AML/CTF reporting entity.

---

[15] What is self-custodial asset administration? (Knowledge Hub)
COMPANY (TOKENISER) Tokeniser Pty Ltd · Accessed 27 October 2026
https://tokeniser.com/resources/knowledge-hub/platform/what-is-self-custodial-asset-administration
Used for: Tokeniser says it does not hold the private key (the investor or a designated key manager does) and provides key management and recovery options.

---

[16] Tokeniser: About us
COMPANY (TOKENISER) Tokeniser Pty Ltd · Accessed 27 October 2026
https://tokeniser.com/about
Used for: Tokeniser describes itself as a Redbelly Network project, and lists a division of responsibility in which IQ-EQ provides trust, registry, fund administration, and licence and service.

---

[17] Asset tokenisation on Redbelly Network
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://redbelly.network/asset-tokenisation
Used for: Redbelly's statements that eligibility is enforced at the point of trade using verifiable credentials and that AML, CTF and Travel Rule requirements can be applied as needed.

---

[18] Receptor (ID protocol), Redbelly Network technical documentation
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://docs.redbelly.network/pages/receptor/
Used for: Receptor is Redbelly's native digital identity and verifiable credential protocol; it facilitates network access; issuers who provide network access are accredited by Redbelly; built on the W3C verifiable credential data model.

[19] Eligibility Kit overview, Redbelly Network technical documentation
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://docs.redbelly.network/pages/eligibility-sdk/overview/
Used for: Toolkit for real-world asset issuers to verify investor eligibility using zero-knowledge proofs without the user revealing sensitive personal data.

[20] Configure eligibility criteria, Redbelly Network technical documentation
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://docs.redbelly.network/pages/eligibility-sdk/configure-eligibility-criteria/
Used for: Eligibility criteria are written as queries over credentials (for example country, age, AML status); supported credential types include AMLCTFCredential and AUSophisticatedWholesaleInvestorCredential; revocation checks should stay on in production.

[21] Individual onboarding overview, Redbelly Network technical documentation
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://docs.redbelly.network/pages/eligibility-sdk/onboarding/individual/overview/
Used for: Individual onboarding to gain access to the Redbelly Network includes wallet authentication, KYC verification and on-chain permission setup.

[22] Business onboarding overview, Redbelly Network technical documentation
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://docs.redbelly.network/pages/eligibility-sdk/onboarding/business/overview/
Used for: Business onboarding (KYB) is provided by Averer and deploys an on-chain Business Identifier contract that can delegate access to company wallets.

[23] Network nodes, Redbelly Vine developer portal
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://vine.redbelly.network/nodes/
Used for: Node operators are described as successful applicants who receive an invitation to run a node.

[24] Network reconfiguration, Redbelly Vine developer portal
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://vine.redbelly.network/nodes/reconfiguration/
Used for: Governor and candidate nodes; governors are rotated; governors must notify Redbelly of planned downtime and may be demoted or replaced under the governance rules.

[25] **Rewards and incentives, Redbelly Vine developer portal**
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://vine.redbelly.network/nodes/rewards-and-incentives/
Used for: Each node operator must stake RBNT to be eligible to participate in Mainnet; Redbelly reserves the right to slash the stake of misbehaving participants.

REDBELLY

General information only, not legal advice. Independent community explainer prepared for the Redbelly DAO. Not an official publication of Redbelly Network, Tokeniser, ASIC or the Australian Government.

Sources checked 27 October 2026. Law and guidance may have changed since.